

26STCV04762 26STCV04762

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-16

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Case Number: 26STCV04762 Hearing Date: September 16, 2026 Dept: 512

HEARING DATE: Weds., September 16, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Negrete

III v. Scentair Technologies, LLC COMPL.

FILED: 02-13-26

CASE NUMBER: 26STCV04762 FAC FILED: 05-27-26

NOTICE: OK

PROCEEDINGS: DEMURRER

TO PLAINTIFF'S FIRST AMENDED COMPLAINT

MOVING PARTY: Defendant

Scentair Technologies, LLC

RESP. PARTY: Plaintiff Robert Negrete III

DEMURRER

(CCP § 430.10, et seq.)

TENTATIVE RULING:

Defendant Scentair

Technologies, LLC's Demurrer to Plaintiff's First Amended Complaint is

SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

Moving party is ordered to
give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on September 2,
2026 [] Late [] None

REPLY: Filed on
September 9, 2026 []
Late [] None

ANALYSIS:

I.
Background

On February 13, 2026, Plaintiff Robert Negrete III
("Plaintiff") filed the instant action against Defendant Scentair Technologies,
LLC ("Defendant"), alleging causes of action for Violations of the California
Trap and Trace Law and Intrusion Upon Seclusion.

On May 27, 2026, Plaintiff filed a First Amended
Complaint ("FAC") against Defendant, alleging causes of action for Violations
of the California Trap and Trace Law and Intrusion Upon Seclusion.

On June 30, 2026, Defendant filed the instant Demurrer to
the FAC ("Demurrer") and request for judicial notice.

On September 2, 2026, Plaintiff filed an Opposition.

On September 9, 2026, Defendant
filed a Reply.

II.

Request
for Judicial Notice

Defendant requests that the Court take
judicial notice of three court documents in other unrelated trial and appellate
matters; the California Senate Committee on Public Safety Analysis of
California Assembly Bill No. 929, California 2015-2016 Regular Session; and
California Assembly Bill No. 929, California 2015-2016 Regular Session.
(Demurrer, RJN, pp. 1-5, Exhs. 1-6.)

Plaintiff

filed a response to the request for judicial notice and states trial court
decisions are not binding on this Court and, moreover, the material requested
by Defendant to be judicially noticed is not relevant to the instant matter.
(See Response, pp. 2-3.)

Having

reviewed the moving papers, the Court GRANTS Plaintiff's request, pursuant to
California Evidence Code section 452, subdivisions (c) and (d), but not for the
truth of the matters asserted therein.

III.

Legal
Standard

"As a general matter, in a
demurrer proceeding, the defects must be apparent on the face of the pleading
or via proper judicial notice." (Donabedian v. Mercury Ins. Co.
(2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone,
and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants,
Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes
the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.)
The only issue a demurrer is concerned with is whether the complaint, as it
stands, states a cause of action. (Hahn v. Mirda (2007) 147
Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

IV.

Discussion

A. Meet and Confer

Code of Civil Procedure section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41, subdivision (a). (Demurrer, Herman Decl.) According to the declaration, the parties spoke by telephone regarding the FAC and Defendant’s objections to the FAC. (Demurrer, Herman Decl., ¶ 4.)

Thus, the Court finds the meet and confer requirement satisfied.

B. Demurrer

Allegations in the FAC

The FAC alleges that Plaintiff is a consumer privacy advocate who works as a “tester” to ensure that companies abide by the privacy obligations imposed by California law. (FAC, ¶ 107.) Defendant is a Delaware corporation that operates a website. (FAC, ¶¶ 6-8.)

Upon accessing the website of Defendant in early 2026, Plaintiff alleges Defendant secretly installed a “pen register” and “trap and trace” tracking software on Plaintiff’s device in violation of California law. (FAC, pp. 3-4, 35-36, 38-39, 44-45.) Specifically, Plaintiff asserts that Defendant’s website contains third-party cookies that transmit information to third parties, including personal information such as browsing activities and private communications with Defendant. (See FAC, pp. 4-5.)

Plaintiff alleges that this transmission occurs immediately when Defendant’s webpage loads “before the user is given an effective opportunity to grant or deny consent through the site’s cookie or privacy controls such as the Website’s cookie banner. The browser allows multiple third-party tracking services to install client side scripts on the browser that execute and transmit technical and behavioral information from the user’s browser to external servers.” (FAC, ¶ 24.) However, “Plaintiff elected to reject all third-party cookies. Defendant nonetheless secretly installed tracking technology on Plaintiff’s device and caused Plaintiff to be de-anonymized, tracked and surveilled while using the internet.” (FAC, ¶ 108.)

Plaintiff alleges these installations constituted an invasion of Plaintiff’s privacy under California Penal Code section 638.51(a) because Plaintiff did not provide prior consent to Defendant regarding these installations on Plaintiff’s browser, and Defendant did not obtain a court order before installing the installations. (See FAC, pp. 44-45.)

Plaintiff alleges that “Plaintiff

continues to desire to browse content featured” on Defendant’s website. (See FAC, ¶ 115.)

The FAC alleges causes of action for a violation of the California Invasion of Privacy Act (“CIPA”), specifically Penal Code section 638.51, and Intrusion Upon Seclusion. (FAC, pp. 44-46.)

Parties’ Arguments

Defendant demurs to the FAC on the grounds that “Plaintiff has not suffered an injury in fact, does not have standing to bring such a claim, and therefore Plaintiff fails to state facts sufficient to constitute a cause of action against Defendant.” (Demurrer, pp. 3, 12-20.) Defendant states the FAC fails to allege the collection of personal information that would be the type of privacy invasion to confer Plaintiff with standing; Plaintiff never identifies any specific information that was collected by Defendant that would be injurious to Plaintiff; and tester plaintiffs like Plaintiff cannot suffer an injury in fact because they invite and expected the very alleged injury complained of. (Demurrer, pp. 12-15.) Further, CIPA only covers telephone-tracking technology, not internet-based tracking tools. (Demurrer, pp. 15-20.)

In Opposition, Plaintiff contends that *Yeh v. Barrington Pacific, LLC* (2026) 117 Cal. App.5th 1303 applies to the CIPA provision at issue and does not require Plaintiff to plead actual damages. (See Opp., p. 10.) Further, Plaintiff contends the FAC pleads a concrete injury based on Defendant’s wrongdoing and the inference that Plaintiff’s access of Defendant’s website subjected Plaintiff to being digitally fingerprinted and having Plaintiff’s information stored and sent to third parties. (See Opp., pp. 10-12.) Plaintiff also contends that Plaintiff’s status as a tester does not impact Plaintiff’s expectation of privacy (Opp., pp. 14-17), and Plaintiff did not suffer a self-inflicted injury. (See Opp., pp. 17-18.) Finally, Plaintiff distinguishes law relied upon by Defendant (Opp., pp. 18-20) and argues CIPA applies to websites. (See Opp., pp. 20-22.) Plaintiff also requests leave to amend to add an additional claim “based on the detailed interception, third-party transmission, and lack-of-prior-consent facts already alleged.” (See Opp., p. 23.)

In Reply, Defendant reiterates that Plaintiff failed to plead a concrete injury and thus lacks standing in the

instant action, and California courts are divided on whether CIPA's trap and trace provisions reach website cookies. (See Reply, pp. 1-7.) Defendant highlights legislative proposals that may impact the issue at bar in the near future and requests the Court deny Plaintiff leave to amend the Complaint. (See Reply, pp. 7-9.)

Analysis

"Except as provided in subdivision

(b), a person may not install or use a pen register or a trap and trace device without first obtaining a court order pursuant to Section 638.52 or 638.53."

(Pen. Code, § 638.51, subd. (a).) "A violation of this section is punishable by a fine not exceeding two thousand five hundred dollars (\$2,500), or by imprisonment in the county jail not exceeding one year, or by imprisonment pursuant to subdivision (h) of Section 1170, or by both that fine and imprisonment." (Pen. Code, § 638.51, subd. (c).)

" 'Pen register' means a device or

process that records or decodes dialing, routing, addressing, or signaling information transmitted by an instrument or facility from which a wire or electronic communication is transmitted, but not the contents of a communication. 'Pen register' does not include a device or process used by a provider or customer of a wire or electronic communication service for billing, or recording as an incident to billing, for communications services provided by such provider, or a device or process used by a provider or customer of a wire communication service for cost accounting or other similar purposes in the ordinary course of its business." (Pen. Code, § 638.50, subd. (b).)

" 'Trap and trace device' means a

device or process that captures the incoming electronic or other impulses that identify the originating number or other dialing, routing, addressing, or signaling information reasonably likely to identify the source of a wire or electronic communication, but not the contents of a communication." (Pen. Code, § 638.50, subd. (c).)

"Any person who has been injured by a

violation of this chapter may bring an action against the person who committed the violation for the greater of the following amounts: (1) Five thousand dollars (\$5,000) per violation. [¶] (2) Three times the amount of actual damages, if any, sustained by the plaintiff." (Pen. Code, § 637.2, subd. (a).)

“It is not a necessary prerequisite to an action pursuant to this section that the plaintiff has suffered, or be threatened with, actual damages.” (Pen. Code, § 637.2, subd. (c).)

The legislative purpose of the Pen

Register statute was to authorize law enforcement to seek orders for telephone surveillance. Section 638.50 does not address the privacy rights of Internet users.

Here, Plaintiff fails to plead a

violation of Penal Code section 638.51. The only specific act the FAC alleges is that when Plaintiff used his device to voluntarily access Defendant's website, Defendant collected Plaintiff's IP address and transmitted it. (See FAC, ¶¶ 7-8, 120.) However, the collection of an IP address occurs when a user accesses any website – “IP addresses are ... conveyed to websites that an internet user visits, and administrators of websites...can see the IP addresses of visitors to their sites. However, site administrators do not possess information linking a given IP address to a particular person.” (U.S. v. Christie (3d Cir. 2010) 624 F.3d 558, 563.) In the instant matter, Plaintiff chose to allow Defendant to “collect” the IP address. (U.S. v. Morel (1st Cir. 2019) 922 F.3d 1, 9 [“[A]n internet user generates the IP address data ... only by making the affirmative decision to access a website or application”].) It would be absurd to interpret the pertinent CIPA provisions to criminalize the process by which all websites communicate with all users who voluntarily elect to access them. Indeed, a pen register does not include a “process used by a provider or customer of [an] ... electronic communication service for ... communications service provided by such provider ... or other similar services in the ordinary course of business.” (Pen. Code, § 638.50, subd. (b).)

Even if the process of collecting IP

addresses is deemed a pen register, there is no liability when an electronic communication service does so to “operate, maintain, and test [an] ... electronic communication service” or to “record the fact that [an] ... electronic communication was initiated or completed” to protect against unlawful or abusive use of the service. (Pen. Code, § 638.51, subd. (b).) Given the breadth of the statutory definition, the Court finds Defendant's website is an electronic communication service and, under the terms of the statute, obtaining IP addresses from ordinary user access does not violate its terms.

Even if it is assumed that the ability of a website operator to obtain a user's IP address constitutes operating a pen register, the issue then is whether, when Plaintiff chose to access Defendant's website, he had a reasonable expectation in the privacy of his computer's IP address. The Court finds Plaintiff did not.

To establish his claim that Defendant violated his right of privacy, Plaintiff must establish (1) a specific, legally protected privacy interest in his device's IP address, and (2) a reasonable expectation of privacy on Plaintiff's part. (Hill v. National Collegiate Athletic Association (1994) 7 Cal.4th 1, 35-36.)

However, "a defendant 'ha[s] no expectation of privacy in . . . IP addresses' or basic subscriber information because internet users 'should know that this information is provided to and used by Internet service providers for the specific purpose of directing the routing of information.'" (U.S. v. Rosenow (9th Cir. 2022) 50 F.4th 715, 738, citing U.S. v. Forrester (9th Cir. 2008) 512 U.S. 500, 510; In re Zynga Privacy Litigation (9th Cir. 2014) 750 F.3d 1098, 1108.)

Accordingly, Plaintiff fails to allege a cause of action for a CIPA violation and the derivative cause of action for Seclusion and Intrusion.

Thus, the Demurrer is SUSTAINED.

Further, the Demurrer is SUSTAINED WITH LEAVE TO AMEND given that Plaintiff requested leave to amend in the Opposition so as to add an additional claim based on the facts pled in the FAC.

Insofar as Plaintiff relies on Yeh v. Barrington Pacific, LLC (2026) 117 Cal. App.5th 1303 to contend the Demurrer should be overruled, the Court finds this case involves an issue separate and apart from the one currently at issue and is thus inapt to the instant circumstances.

V.

Conclusion

& Order

For the foregoing reasons,

Defendant Scentair Technologies, LLC's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

Moving party is ordered to
give notice.